

Decision – Identified Version

1 (6)

2019-07-03

Postal Address: Box 8114, 104 20 Stockholm

Email: datainspektionen@datainspektionen.se

Website: www.datainspektionen.se

Phone: 08-657 61 00

Supervisory Object

Supervision under the EU General Data Protection Regulation

2019/679 - Video Surveillance

Decision of the Data Inspection Authority

The Data Inspection Authority finds that the supervisory object is conducting video surveillance at its property in violation of the EU General Data Protection Regulation by surveilling without a legal basis. The Data Inspection Authority prohibits the supervisory object from continuing the video surveillance it is currently conducting at its property.

The case is closed.

Data Inspection Authority

2 (6)

Account of the Supervisory Case

The Data Inspection Authority has received a complaint regarding video surveillance of residential buildings at a property. In light of the complaint, the Data Inspection Authority has initiated supervision against the supervisory object that owns the property and conducts the video surveillance.

The following has primarily emerged from the review. The video surveillance is conducted with a camera whose field of view mainly covers the entrance to the property, parking, and two residential buildings. The buildings contain private residences that the supervisory object rents out. The parking area is used both by the supervisory object itself and by tenants. The camera is fixed and lacks a zoom function. Surveillance is conducted with continuous image recording and is activated by motion. The camera also has an audio recording function. The audio material is stored together with the video material.

Reasons for the Decision

What rules apply to the surveillance?

Video surveillance is a form of personal data processing. How and to what extent it is permissible to conduct video surveillance is regulated, among other things, in the General Data Protection Regulation. There are also national provisions in the Camera Surveillance Act (2018:1200) that complement the General Data Protection Regulation. The Camera Surveillance Act includes provisions regarding when permission is required for video surveillance. A private landlord, as is the case in this matter, does not need permission to conduct video surveillance. However, this does not mean that the surveillance is automatically permitted. If a surveillance camera captures an identifiable person or any other personal data in image, the rules in the General Data Protection Regulation must be followed as a starting point. This is evident from Article 2.1 of the General Data Protection Regulation. Certain types of personal data processing are, however, exempt from the rules in the General Data Protection Regulation. The exemption of interest in this case is the so-called private exemption in Article 2.2 c of the General Data Protection Regulation.

1 REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

Data Inspection Authority

3 (6)

The private exemption means that the General Data Protection Regulation does not apply to personal

data processing carried out by a natural person in the course of purely private activities or that is related to his or her household and thus lacks a connection to professional or commercial activities. The supervisory object has stated that it owns the relevant property and that it is as a private individual that it conducts the surveillance. However, the Data Inspection Authority finds that the supervisory object is conducting activities at the property in the form of renting out residences. Therefore, it is not a matter of surveillance of a purely private nature or related to the supervisory object's household in such a way that it falls under the private exemption. The General Data Protection Regulation is thus applicable to the surveillance.

Is the video surveillance legal?

The General Data Protection Regulation contains a large number of rules that must be followed when processing personal data. Among other things, there are requirements to provide information about the processing and to have satisfactory security regarding the collected material. Within the framework of this supervisory case, the Data Inspection Authority does not address all the rules and questions that may arise in such personal data processing as the current video surveillance entails. The examination is instead limited to the question of whether the supervisory object has a legal basis for conducting the current video surveillance.

For the video surveillance conducted by the supervisory object to be legal, there must be a legal basis for the surveillance according to Article 6 of the General Data Protection Regulation. The legal basis relevant in this case is the balancing of interests according to Article 6.1 f of the General Data Protection Regulation. This means that the supervisory object must have a legitimate interest in conducting video surveillance and that this interest must outweigh the privacy interest at the location. If the purpose of the surveillance can be achieved in a less privacy-intrusive manner, that alternative should be chosen instead.²

The supervisory object has stated that it has had problems with unauthorized individuals moving on the property, vandalism, and attempted break-ins. After being given the opportunity to provide more specific information regarding the incidents, it has stated that a door on a parked car was vandalized, that a bicycle has been stolen, and that gardening tools have gone missing. It has further stated that it

² This follows from Articles 5 and 6 of the General Data Protection Regulation.

Data Inspection Authority

4 (6)

does not know exactly when the incidents occurred but states that they took place sometime during December 2018. No police report has been filed. When asked if any other measures than video surveillance have been taken to address the problem, it was stated that the lighting at the location has been improved.

The Data Inspection Authority notes that video surveillance aimed at preventing or investigating crimes can be a legitimate interest as referred to in the General Data Protection Regulation (GDPR).

However, for the surveillance to be legal, the interest in surveillance must outweigh the privacy interest at the location. In this case, it concerns a landlord who monitors areas adjacent to the residences they rent out. Video surveillance occurring in connection with individuals' homes is generally considered to be highly sensitive in terms of privacy (cf. the case law HFD 2011 ref. 77). The current surveillance means that tenants are filmed every time they come home or leave their home. Other individuals intending to visit the residences must also pass by the surveillance cameras. Such surveillance enables mapping of the residents' habits, visitors, and social circles. The mere fact that the surveillance concerns tenants and their home environment thus requires very strong reasons for the surveillance to be permitted. Furthermore, the fact that the surveillance involves video recording and that audio material is also recorded and stored increases the intrusion into privacy even further.

The question then is whether the interest of the supervisory subject in conducting video surveillance outweighs the privacy interest at the location. It has indeed emerged that incidents have occurred in the yard. However, these have only been a few cases of relatively low severity. No more detailed information about the incidents has been provided, and the events have not been reported to the police. Regarding alternative measures to video surveillance, the supervisory subject has stated that they have improved the lighting. However, according to the Data Inspection Authority, this is not

sufficient for them to be considered to have demonstrated that the purpose of the surveillance cannot be achieved with less intrusive measures. The supervisory subject's interest in video surveillance weighs relatively lightly against this background. Overall, the Data Inspection Authority finds that the supervisory subject has not demonstrated that they have a legitimate interest in conducting video surveillance that outweighs the privacy interest at the location. They thus lack a legal basis for the video surveillance, and the surveillance is therefore not legal.

Data Inspection Authority

5 (6)

What is the consequence of the surveillance being illegal?

The Data Inspection Authority, in its capacity as a supervisory authority, is tasked with ensuring that those who conduct video surveillance comply with the rules in the General Data Protection Regulation. According to Article 58.2 of the GDPR, there are several corrective powers that the Data Inspection Authority can utilize in cases of illegal video surveillance. The Data Inspection Authority can, among other things, issue a reprimand, order the data controller to ensure that processing is carried out in accordance with the GDPR, restrict or prohibit processing, or impose an administrative fine. Each action must be appropriate, necessary, and proportionate to ensure compliance with the regulation, taking into account the circumstances of each individual case.

Which corrective power should be used?

The Data Inspection Authority has assessed that the supervisory subject is conducting video surveillance in violation of the GDPR. According to the Data Inspection Authority, it is not possible to limit the surveillance in such a way that it can be conducted in accordance with the GDPR. Against this background, it is appropriate, necessary, and proportionate to prohibit the supervisory subject from continuing the video surveillance they are conducting at their yard, based on Article 58.2 f of the GDPR.

Should an administrative fine be imposed?

According to Article 58.2 i, the Data Inspection Authority also has the option to impose administrative fines, depending on the circumstances of each individual case. In assessing whether a fine should be imposed, consideration should be given to the nature, severity, and duration of the violation, taking into account the nature, scope, or purpose of the processing in question, as well as the number of affected data subjects and the harm they have suffered. The assessment should also consider whether the violation was committed intentionally or through negligence.

It has not been established that the supervisory subject intentionally monitored in violation of the GDPR. The violation can rather be seen as a result of a flawed assessment of the surveillance versus privacy interests. It can also be noted that although the surveillance concerns a highly privacy-sensitive location, it is not a place where a large number of people move and are filmed. It should also be taken into account that the surveillance is conducted by a private individual and not, for example, a housing company. Overall, the Data Inspection Authority assesses that the violation is serious but not serious enough to warrant the imposition of a fine.

Data Inspection Authority's overall assessment

In summary, the Data Inspection Authority assesses that the supervisory subject is conducting video surveillance at their yard in violation of the GDPR by surveilling without a legal basis. The supervisory subject shall therefore be prohibited from continuing the current video surveillance.

This decision has been made by unit manager Charlotte Waller Dahlberg after presentation by lawyer Andreas Persson. In the final handling, chief lawyer Hans-Olof Lindblom has also participated.

Charlotte Waller Dahlberg, 2019-07-03 (This is an electronic signature)